

Friday, 13 December 2013

Jonathan Pope
Chairman
The Courtyard Management Company
The Courtyard
Liscombe Park
Soulbury
Bedfordshire

Dear Jonathan,

I write as promised to detail what we agreed at our meeting this week, which referred to your email of 5/11/13, and the document attached to your email of 28/11/13.

The issues resolved are to do with the supply of water and the payment for service charge.

Service Charge

I agree with your definition of the responsibility of Courtyard residents to pay a service charge which is "fair and proportionate" and "a percentage of the costs according to use incurred by the owners of LPL's land of cleaning, repair, maintenance and renewal of the access road". The access road stretches from the highway to the entrance to the brownfield site to the south east of the courtyard and the entrance to the health club area to the east of the last cottage

We have agreed that this responsibility will be discharged by Courtyard residents paying a fixed annual fee of £30 per household. Payment was agreed to be annually on or before 1st April, in advance, as a lump sum of £420 by the Courtyard Management Company who will be responsible for collecting individual contributions from the residents.

As it is anticipated that there will be a period between 1/1-31/3/14 that Thameside construction will be responsible for part of the payment for that quarter and CMC for the balance. Therefore the first full year payment will be for the year from 1/4/14.

We have agreed that this fixed amount would be payable each year for 5 years and the amount would be renegotiated in good faith for ensuing periods.

I will write to Thameside when we send the invoice for the service charge due at 31/12/13 stating that we have no objection to our solicitor providing the certificate required as part of the arrangement for CMC to take control of the Courtyard's common parts providing we have received all the proceeds of Courtyard service charges presented to Thameside and that Thameside pay the fee our solicitor will require.

You have said in your recent proposal that LPL "intends to recoup the cost of any significant structural work to the road only from new tenants". This is not the case as it would be unreasonable. However we both recognise that this is effectively the case during the 5 year fixed price period we have agreed.

Water

We have agreed to invoice CMC quarterly in arrears for water consumption upon the presentation of a schedule showing the following:

Property address
Meter number
Meter reading



Date meters read

The schedule should be provided no later than 7 days after the quarters end and payment received within 7 days of the invoice date.

CMC will assume responsibility for the collection of monies from each leasehold and freehold owners and for the water infrastructure from and including the first meters sited adjacent to your Calor gas tank.

I believe the above to be an accurate summary of our discussions and request you let me know if you agree.

Yours sincerely

David Tonnison
Director